

Decedents Review Questions – Fall 2025

Intestacy

1. Under UPC § 2-102(4), does the remaining $\frac{1}{2}$ go to the decedent's kid who is not the spouse or is it split up between that kid + any other kid who is the decedent's and spouse? Ex: A (decedent) has spouse B and kid C with spouse B. A also has kid D from prior relationship, B gets 150k + $\frac{1}{2}$, does that other half go all to D or is it split evenly between C and D?
2. If 2 parents' of a child divorce and a stepparent (who is not married to the other spouse) adopts the kid, can the kid inherit from the stepparent even if the stepparent is not married to the biological parent?

Wills

3. When contesting a will, do you need to have standing for THIS will to get thrown out or can it be any later will in the line/intestacy? (W2->W1-> intestacy, person only takes under intestacy, do they have standing to challenge W2)
4. Can you go over the difference between "portions" as used in the UPC and "provisions" for holographic wills?
5. Is substantial compliance and argument you can make in a UPC jurisdiction?
6. Is substantial compliance more about "how close we to statute" while harmless error is more about testator's intent for document to be will?
7. What is the significance of testamentary intent?
8. Can you have a "will" that all it does is revoke a previous will? Ex. I have a will but want to estate to go through intestacy, can I make a will that only says "I hereby revoke my will" as long as it follows the formalities of a will?
9. For DRR if the first will is not physically revoked, will it be probated (without DDR) if the second will is found to be invalid?

10. The class recording cuts off during the Mi-Long fire problem example. I wanted to clarify two things about the timing of the witness requirement. First, 2-502(a)(3) requires the signing of the two witnesses within a reasonable time after the testator signed. So, if the friends returned without Mi and signed the will, that wouldn't be valid because it wasn't in Mi's presence, correct? Second, say the three of them came back after the fire and Mi-Long acknowledged that she signed or that the document was her will, then the friends signed, that would be valid, correct?
11. I wanted to clarify using substantial compliance/harmless error for revocation. You cannot use harmless error to argue for physical act or express revocation, but you can use substantial compliance if the facts warrant such an argument. Say, however, you have a subsequent instrument, would a better argument be to make an argument under 2-507 Implied revocation?
12. For reformation of a will, should we be applying the rule from Flannery or the Restatement?
13. Can holographic wills be signed by another in the conscious presence of the testator, or does the testator have to sign it themselves?
14. Under the UPC, in undue influence claims, does the burden shift once the confidential relationship and the testator's susceptibility have been proven?
 - a. And under the UPC, once the burden shifts, what is the standard for the party being challenged to disprove it?

Trust

15. Can creditors come after any distribution from a mandatory trust if there is a spendthrift? Problem 6 on 2012 problem set #3 makes it seem like a creditor could come after a part mandatory part discretionary trust

Q: Tina forms a trust for her daughter Sally. The trust states that the trustee must distribute \$2,400 to her annually, but any remaining income and principal may be distributed based solely on the trustee's discretion. The trust has a spendthrift clause. Sally is in default of her student loans. The bank has demanded that the trustee pay the entire loan balance of \$45,000. Describe the bank's arguments in reaching the trust assets

A: The Bank would attempt to attach the \$2,400 annual distribution before the trustee distributes it to Sally. The Bank would also make a demand for the trustee to exercise its discretion to and distribute principal to satisfy the \$45,000 loan. Unfortunately for the Bank, the trust has a spendthrift clause which will prevent the Bank from having the right to force the loan to be repaid. The trustee has absolute discretion on whether to distribute principal and as long as its decision is within the standards of UTC 814, there won't be any problem. The Bank could be successful in forcing the trustee to essentially garnish the payment of \$2,400 to the Bank, but not without a court order.

16. Is placing money in a bank account satisfying the delivery element of a trust or does the title to the bank account need to be transferred over to trustee for delivery to be complete (Q1 on problem set # 3 from 2012)

17. Is restricting marriage in an incentive trust not against public policy? Q3 on problem set #3 from 2012 says its an ok trust purpose.

Q: Richard creates a trust for the benefit of his daughter Janet. Janet is entitled to the principal and accumulated income of the trust at age 25 if she remains unmarried, has no children out of wedlock, gets a 4.0 at an accredited college, and refrains from the consumption of any alcohol or illegal narcotics. This trust has a valid purpose. True or False

A: True. Incentive trusts are a valid purpose as long as the requirements are not too extreme or intrusive. None of these requirements are illegal; none of them are too extreme, etc.

18. Can you review when it is permissible for a sole trustee to be the sole present beneficiary? Is the doctrine of merger not apply simply because there is a subsequent interest in the trust?

19. Can you review the legal consequences of a mandatory vs discretionary trust?

20. Can you review the nature of the beneficiaries interest and when a trustee violates there duty to the beneficiary in a support/discretionary trust?

21. Are the beneficiaries interest in a support trust considered inalienable as a baseline (no spendthrift clause needed)?
22. Does UTC § 412 permit termination in the case of 9B on problem set #3 2012? Could you not argue that the trust purpose was to provide for Kate and in this case, she's never going to finish college so termination is ok?

Q: Elizabeth forms a trust for her daughter Katie to provide for her college education. The trust states that once the trustee has fulfilled his fiduciary duty, any excess funds pass to Katie outright. Tina, the trustee, is seeking your advice. Katie is now 24 years of age, graduated from college, and Tina wants to terminate the trust. Can she? → 9B: How does your question to 9A change if Katie is 30 years of age and not yet graduated from college but has an established life as a mother for 3 young children, struggling to make ends meet, with no plans to finish college

A: UTC 411(b) does not permit the termination of a trust if the material purpose has not been satisfied even though all the beneficiaries consent.

23. Say you have this will provision, "To Bank in trust, income to G for life, remainder to L." If L dies after G, does the trust end or does the remainder go to L's estate? I know that if there no longer is a beneficiary, the trust fails. However, how is this different from Zuckerman where her estate wanted the trust? What leads to one result v. the other?
24. Would you ask a spendthrift question with a government agency? A review question I did said a spendthrift provision is not enforceable against a claim by the government.
25. Can a spendthrift clause prohibit only involuntary or only voluntary transfers? Or does it have to do both?
26. How much should we be going into open vs. closed class beneficiaries & power of appointment?

Changed Circumstances

27. Does a residuary clause override the application of section 2-1106 Ex: A's will gives half his estate to B (who has a child) and a residuary clause to C, if B disclaims does B's interest pass to B's child or C's residuary clause?
28. During the review session, could we look at a potential divorce problem that implicates disclaimer? Some of us were trying to create a situation where you would have a § 2-1106(b)(3)(C) analysis with a divorce, but I am not understanding how or if that happens. What then would a divorce disclaimer analysis look like? I also couldn't find an example that we reviewed during class because when we reviewed divorce we didn't get to disclaimer yet.
29. Statutory issue of exoneration is decided by state statutes, but most states have no exoneration → does the UPC have exoneration, and will you tell us what the jurisdiction is?
30. Does a court do hotch pot calculations for satisfaction, or just advancements? Or will there usually only be one person included & one gift?

Protection of the Family

31. Are we expected to know Community Property?